

Contentious Chamber

Decision on the merits 12/2025 of January 22, 2025

File number: DOS-2020-05957

Subject: Fingerprints for the electronic identity card

The Contentious Chamber of the Data Protection Authority, composed of Mr. Hielke HIJMANS, president, sitting alone;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter referred to as "GDPR";

Considering the law of December 3, 2017, establishing the Data Protection Authority, hereinafter referred to as "LCA";

Considering the internal regulations as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents in the file;

Has made the following decision regarding:

The complainant:

Ms. X, hereinafter referred to as "the complainant";

The defendant:

Y, hereinafter referred to as "the defendant"

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I. Facts and procedure

1.

On January 12, 2021, the complainant filed a complaint with the Data Protection Authority against the defendant, a municipality.

2.

The subject of the complaint concerns the issuance of a new identity card for which the defendant would take four fingerprints from each hand. Article 6, § 2, 8° of the law of July 19, 1991, however, states that only one fingerprint from each hand may be taken. The complainant asserts that after a request in this regard, no transparent information was provided by the city of (...) following the taking of the fingerprints, and that no legal basis could be provided for the mandatory taking of four fingerprints per hand. The complainant refers to the email correspondence of December 17, 2020, and December 22, 2020, with the defendant, as attached to the complaint. The complainant asserts not only that the number of fingerprints taken for the identity card exceeds that permitted by law, but that it is also possible that the defendant uses the other fingerprints for other purposes.

3.

On January 19, 2021, the complainant informed the First Line Service that when collecting the electronic identity card, eight fingers were again scanned to activate the identity card. According to the complainant, this implies that the defendant's assertion that the other fingerprints, except for the single fingerprint per hand prescribed by law, are destroyed is false.

4.

On January 29, 2021, the complaint was declared admissible by the First Line Service based on Articles 58 and 60 of the LCA, and the complaint was forwarded to the Contentious Chamber under Article 62, § 1 of the LCA.

5.

On June 16, 2023, the Contentious Chamber decided, based on Article 95, § 1, 1° and Article 98 of the LCA, that the file could be examined on the merits and informed the concerned parties by registered mail of the provisions as stated in Article 95, § 2 and Article 98 of the LCA. They were also informed, under Article 99 of the LCA, of the deadlines for submitting their conclusions.

The deadline for receiving the defendant's response conclusions was set for August 11, 2023, the deadline for the complainant's reply conclusions for September 1, 2023, and the deadline for the

defendant's reply conclusions for September 22, 2023.

1 Article 6, § 2. The identity card and the foreigner's card contain, in addition to the holder's signature, personal information visible to the naked eye and electronically readable.

The electronically readable personal information concerns:

[...]

8° the digitized image of the fingerprints of the index finger of the left and right hand of the holder or, in case of disability or incapacity, of another finger of each hand, the King determines by deliberative order in the Council of Ministers, after consulting the Data Protection Authority, the conditions and modalities for capturing the digitized image of the fingerprints.

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6.

On June 19, 2023, the defendant requests a copy of the file (art. 95, § 2, 3° of the LCA), which was transmitted to him on June 21, 2023.

7.

On August 10, 2023, the Disciplinary Chamber receives the defendant's response conclusions.

8.

Following the absence of response conclusions from the complainant, the defendant does not submit any reply conclusions either.

9.

On November 26, 2024, the Disciplinary Chamber receives from the defendant a request to transmit the status of the file.

10.

Prior to the reasoning, the Disciplinary Chamber emphasizes that the duration of this procedure has been (too) long, particularly due to the significant number of cases being processed within the Disciplinary Chamber.

## II. Reasoning

a) Lawfulness of processing and transparency (Article 5.1 a) of the GDPR in conjunction with Articles 6, 12, and 13 of the GDPR)

11.

Regarding the applicable legislation, the defendant refers to the Royal Decree of March 25, 2003, concerning identity cards, more specifically to Article 3, § 52, to justify the processing of fingerprints for the issuance of the electronic identity card.

12.

The Disciplinary Chamber notes that the aforementioned Royal Decree was enacted in execution of the law of July 19, 1991, concerning population registers, identity cards, foreigner cards, and residence documents, particularly its Article 6, § 2, third paragraph, which states that the conditions and modalities for capturing the digitized image of fingerprints must be defined by royal decree. The processing of fingerprints on

2 Article 3, § 5 of the Royal Decree of March 25, 2003:

[...]

Fingerprints are digitized at the initiative of the municipal authority using ad hoc sensors. The digital image of these fingerprints is securely sent via the services of the National Register to the producer of the identity card to be electronically integrated.

[...]

When fingerprints cannot be taken from the index finger or from one of them, either because they do not have sufficient quality or due to a disability or illness, fingerprints from another finger are taken, according to the following order of priority: 1) index, 2) middle, 3) ring, 4) little, 5) thumb. If applicable, when fingerprints from only one finger among the aforementioned fingers can be taken, an identity card or foreigner card containing only these fingerprints is issued. In all cases, a maximum of one fingerprint per hand will be recorded.

3 Article 6, § 2 of the law of July 19, 1991:

§ 2. The identity card and the foreigner card contain, in addition to the holder's signature, personal

information visible to the naked eye and electronically readable.

[...]

The electronically readable personal information concerns:

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the chip of the identity card complies with European Regulation 2019/1157 of June 20, 2019, which, under its Article 3.5, obliges Member States to integrate fingerprints into the identity card.

13.

As a result, the Contentious Chamber considers that, when producing identity cards, the defendant processes the fingerprints lawfully within the meaning of Article 6.1 c) of the GDPR, given that there is an undeniable legal obligation to integrate fingerprints into identity cards that falls upon the defendant. Therefore, there is no violation of Article 5.1 a) of the GDPR in conjunction with Article 6 of the GDPR.

14.

However, the existence of a valid legal basis does not prevent the other provisions of the GDPR from also being respected, including the principle of transparency as set out in Article 5.1 a) of the GDPR in conjunction with Articles 12 and 13 of the GDPR, given that in the present case, the defendant obtained the personal data directly from the complainant. In order to ensure transparent data processing, the data controller, namely the defendant, must already inform the concerned complainant of the elements mentioned in Article 13 of the GDPR at the time of data collection.

[...]

8° the digitized image of the fingerprints of the index finger of the left and right hand of the holder or, in the case of disability or incapacity, of another finger from each hand, the King determines by a deliberative order in the Council of Ministers after consulting the Data Protection Authority the conditions and modalities for capturing the digitized image of the fingerprints;

4 Regulation (EU) 2019/1157 of the European Parliament and of the Council of June 20, 2019, on the strengthening of the security of identity cards of Union citizens and residence documents issued to Union citizens and their family members exercising their right to free movement; see in this regard: <https://eur-lex.europa.eu/legal-content/FR/TXT/PDF/?uri=CELEX:32019R1157>.

5 Article 3.

[...]

5. Identity cards integrate a highly secure storage medium that contains a facial image of the cardholder and two fingerprints in interoperable digital formats. For the collection of biometric identification elements, Member States apply the technical specifications established by the implementing decision C (2018)7767 of the Commission.

6 Article 13.1. of the GDPR. When personal data relating to a data subject is collected from that person, the data controller provides, at the time the data in question is obtained, all of the following information:

- a) the identity and contact details of the data controller and, where applicable, of the representative of the data controller;
- b) where applicable, the contact details of the data protection officer;
- c) the purposes of the processing for which the personal data are intended as well as the legal basis for the processing;
- d) when the processing is based on Article 6(1)(f), the legitimate interests pursued by the data controller or by a third party;
- e) the recipients or categories of recipients of the personal data, if they exist; and
- f) where applicable, the fact that the data controller intends to transfer personal data to a third country or to an international organization, and the existence or absence of an adequacy decision issued by the Commission or, in the case of transfers referred to in Articles 46 or 47, or Article 49(1), second paragraph, the reference to the appropriate or suitable safeguards and the means to obtain a copy or the place where they have been made available.

2. In addition to the information referred to in paragraph 1, the data controller provides the data subject, at the time the personal data are obtained, with the following additional information necessary

to ensure fair and transparent processing:

a) the retention period for the personal data or, when that is not possible, the criteria used to determine that period;

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15. The file does not contain any document indicating whether the complainant received the required information at the time the fingerprints were taken so that the procedure for issuing the eID (electronic identity card) could begin. The complainant only submits an email correspondence between his father and the defendant in which his father asks the defendant, after the events, for explanations regarding the purposes and legal basis for the processing of fingerprints by the defendant. The complainant also does not provide any document indicating that he himself requested the information in question in his capacity as a data subject within the meaning of Article 4.1 of the GDPR in conjunction with Article 15.1 of the GDPR. The complainant had indeed reached the age of 18 at the time of the events and thus has the right, as an adult, to request the information in question under Article 15.1 of the GDPR. However, it does not appear from the file that the complainant himself requested information from the defendant regarding the personal data concerning him.

b) the existence of the right to request the data controller access to personal data, rectification or erasure of such data, or a restriction of processing concerning the data subject, or the right to object to processing and the right to data portability;

c) where processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of processing based on consent before its withdrawal;

d) the right to lodge a complaint with a supervisory authority;

e) information on whether the requirement to provide personal data is a statutory or contractual requirement or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data, as well as the possible consequences of failing to provide such data;

f) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in such cases, useful information regarding the underlying logic, as well as the significance and the envisaged consequences of such processing for the data subject.

3. When the data controller intends to carry out further processing of personal data for a purpose other than that for which the personal data were collected, the data controller shall provide the data subject with information about that other purpose and any other relevant information referred to in paragraph 2.

4. Paragraphs 1, 2, and 3 shall not apply where, and to the extent that, the data subject already has such information.

7 Article 15.1 of the GDPR

“The data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning him or her are being processed, and, where that is the case, access to the personal data and the following information [own emphasis]:

a) the purposes of the processing;

b) the categories of personal data concerned;

c) the recipients or categories of recipients to whom the personal data have been or will be disclosed, in particular recipients in third countries or international organizations;

d) where possible, the envisaged duration of storage of the personal data or, where that is not possible, the criteria used to determine that duration;

e) the existence of the right to request from the data controller rectification or erasure of personal data, or a restriction of processing of personal data concerning the data subject, or the right to object to such processing;

f) the right to lodge a complaint with a supervisory authority;

g) where the personal data are not collected from the data subject, any available information as to their source;

h) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4),

and, at least in such cases, useful information regarding the underlying logic, as well as the significance and the envisaged consequences of such processing for the data subject.

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16. Although the complainant does not specifically address the information he has obtained or not obtained during the collection of fingerprints, the Dispute Chamber nonetheless reminds that the defendant must provide the data subject with all information in accordance with Article 13 of the GDPR at the time of the first fingerprint collection. This means that the data controller must actively take steps to provide the information in question to the data subject. Under Article 12.1 of the GDPR, the written transmission of information or communications to data subjects is the standard means of communication. If written communication is conducted electronically, a privacy statement/layered communication may also be used. In any case, it is important to emphasize that all information addressed to a data subject must be accessible in one place or in a single document (paper or digital), easily accessible for the data subject if they wish to consult all the information intended for them.

17. The Dispute Chamber emphasizes that the defendant not only has the obligation to provide the information that the data subject requests when exercising their right of access (Article 15 of the GDPR), which concerns personal data that is already processed by the data controller. The data controller also has the obligation to provide the information in accordance with Article 13 of the GDPR from the moment the personal data of the data subject is obtained – thus from the outset – in the case of collecting personal data from the data subject themselves. Proper information in the sense of Article 13 of the GDPR helps to avoid confusion on the part of the data subject and to anticipate requests for clarification from the data subject.

b) Principle of Purpose Limitation (Article 5.1 b) of the GDPR) and Data Minimization (Article 5.1 c) of the GDPR)

18. The complainant states that he fears that following the taking of a fingerprint of several fingers from each hand, these fingerprints may be used by the defendant for other purposes.

19. The defendant contests the claim that the fingerprints taken would be used in any way for a purpose other than the sole integration of a single fingerprint per hand onto the RFID chip of the identity card. The defendant explains that during the procedure for applying for an eID, the standard method recommended by the Public Service

8 Article 12.1 of the GDPR. The data controller takes appropriate measures to provide any information referred to in Articles 13 and 14 as well as to carry out any communication under Articles 15 to 22 and Article 34 regarding the processing to the data subject in a concise, transparent, comprehensible, and easily accessible manner, in clear and simple terms, particularly for any information specifically intended for a child. Information is provided in writing or by other means including, where appropriate, electronically. When the data subject requests it, information may be provided orally, provided that the identity of the data subject is demonstrated by other means.

9 See also in this regard the Guidelines on Transparency under Regulation (EU) 2016/679, particularly points 17, 35-38, available via the following link:

<https://ec.europa.eu/newsroom/article29/items/622227>.

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Federal Interior is followed<sup>10</sup>. In this context, eight fingers are scanned by default to verify which finger from each hand has the best quality fingerprint. Among these fingerprints, at most one fingerprint per hand, the one with the best quality, is recorded. The fingerprint with the best quality is automatically detected by the software. Upon closing the eID application, only two fingerprints – one from each hand – are recorded. The other fingerprints are no longer retained. The two recorded fingerprints are used, as legally prescribed, to be placed on the chip of the eID. As soon as these two fingerprints have been placed on the chip, they are also destroyed in the temporary and secure storage system that is necessary to place the two fingerprints on the chip.

20. Regarding the temporary recording, the defendant refers to Article 3, § 5, second paragraph of the aforementioned Royal Decree of March 25, 2003<sup>11</sup>, which states that fingerprints are digitized at the initiative of the municipal authority using ad hoc sensors. The digital image of these fingerprints is securely sent via the services of the National Register to the identity card producer for electronic

integration. The defendant emphasizes that the procedure as described on the website of the SPF Interior is followed. This means that after the recording of the fingerprints, they are retained for a maximum of three months for the production of the card. This period is necessary to ensure that the card issuer can place the correct data on the chip. This also avoids the need to re-record the fingerprints in case of a technical problem. No later than three months after the recording of the fingerprints, they are deleted from the system, and only one fingerprint per hand remains on the eID chip.

21. As soon as the card is activated, it is again requested to take the fingerprints. These fingerprints are then compared to those on the chip of the new eID to prevent someone else from collecting the eID instead of the person to whom the card belongs. Since the municipality where the eID is collected, in this case the defendant, does not know which fingerprint has the best quality and is recorded on the chip, eight fingerprints are again taken when collecting the eID. The application selects, from the fingerprints that have just been taken, the fingerprints of the fingers that are on the RFID chip, in order to compare them.

22. The Contentious Chamber concludes that there is no valid reason or indication to assume, based on the elements of the file, that the fingerprints taken would be

10 <https://www.eid-renouvelee.be/>

11 Article 3, § 5, paragraph 2 of the Royal Decree concerning identity cards:

Fingerprints are digitized at the initiative of the municipal authority using ad hoc sensors. The digital image of these fingerprints is securely sent via the services of the National Register to the identity card producer for electronic integration.

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used for purposes other than the production of an eID, so that no violation of Article 5.1 b) of the GDPR can be established.

23. Furthermore, it appears that even if several fingerprints per hand are processed, this method is dictated by the legal requirement that the fingerprint of the best quality must be integrated into the chip (Article 3, § 5, fifth paragraph of the Royal Decree of March 25, 2003) which justifies the taking of multiple fingerprints per hand in order to select the best and therefore a single fingerprint per hand, certainly in compliance with the order established in Article 3, § 5, fifth paragraph of the aforementioned Royal Decree of March 25, 2003.

24. The crucial element in this regard is the temporary storage of fingerprints in the card producer's file for a maximum period of three months. This is in accordance with Article 6, § 2, fifth paragraph of the Law of July 19, 1991, concerning population registers, identity cards, foreigner cards, and residence documents which states that the digitized image of fingerprints may only be retained for the time necessary for the production and issuance of the identity card and, in any case, for a maximum period of 3 months, it being understood that after this 3-month period, the data must be destroyed and erased. This short imposed timeframe ensures that fingerprints are not retained beyond the necessary duration. The limited retention period contributes to data minimization given that after the selection of the best fingerprint per hand, the other fingerprints are deleted and subsequently, after the withdrawal of the eID by the concerned individual, the fingerprints stored on the RFID chip of the eID are also deleted from the card producer's file.

25. The defendant demonstrates that taking multiple fingerprints constitutes a simple technical modality that allows the defendant to have the eID manufactured efficiently by the card producer within a relatively short timeframe with the necessary security guarantees by destroying all fingerprints after the legally defined three-month period.

26. The fingerprints recorded on the RFID chip are indeed protected by the same security mechanism used for passports and residence permits.

12 Article 3, § 5, fifth paragraph of the Royal Decree of March 25, 2003, concerning identity cards:

When fingerprints cannot be taken from the index or from one of them, either because they do not have sufficient quality or due to a disability or illness, fingerprints from another finger are taken, according to the following order of priority: 1) the index, 2) the middle finger, 3) the ring finger, 4) the little finger, 5) the thumb. If applicable, when fingerprints from only one finger among the

aforementioned fingers can be taken, an identity card or a foreigner card containing only these fingerprints is issued. In all cases, a maximum of one fingerprint per hand will be recorded.

13 Article 6, § 2, fifth paragraph of the Law of July 19, 1991:

The information referred to in paragraph 3, 8°, may only be retained for the time necessary for the production and issuance of the identity card and, in any case, for a maximum period of 3 months, it being understood that after this 3-month period, the data must be destroyed and erased.

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nationals of third countries<sup>14</sup>. This security mechanism is imposed by the EU regulation on travel documents<sup>15</sup> and consists of granting access to fingerprints only to authorized readers via electronic certificates. The Contentious Chamber also notes in this regard that the defendant refers to the agreement concluded in this context between the defendant and the Belgian State<sup>16</sup>. Article 6, § 2, sixth paragraph of the law of July 19, 1991, also expressly and restrictively states who has access to the fingerprints on the RFID chip<sup>17</sup>.

27. The guarantee provided, namely that this retention of fingerprints is temporary for the purpose of selecting the best fingerprint by hand, and for a short period of a maximum of three months, with this temporary secure recording being made solely for the purpose of producing the eID, leads the Contentious Chamber to conclude that the principle of data minimization is respected in light of the purpose pursued, which is to manufacture the eID in accordance with the legal provisions of the law of July 19, 1991, particularly its article 6, § 218, which defines the information to be included on the eID, including fingerprints as electronically readable personal data. The Contentious Chamber therefore considers that no violation of Article 5.1 c) of the GDPR has been committed.

28. It follows from all the elements as presented above that there is no question in the present case of any violation of the GDPR, so the Contentious Chamber believes that no further action should be taken on the complaint.

<sup>14</sup> <https://www.ibz.rn.fgov.be/fr/documents-didentite/eid/eid-et-rgpd/>

<sup>15</sup> Council Regulation (EC) No. 2252/2004 of December 13, 2004, establishing standards for security features and biometric elements in passports and travel documents issued by Member States

<sup>16</sup> Exhibit 4 of the defendant's conclusions: "Agreement between the Belgian State and Y regarding the issuance of biometric residence permits to nationals of third countries and biometric passports to Belgian citizens."

<sup>17</sup> Article 6, § 2, paragraph 5 of the law of July 19, 1991:

Those authorized to read the information referred to in paragraph 3, 8°:

- the municipal staff responsible for issuing identity cards;
- the police services, as far as necessary for the performance of their legal administrative and judicial police missions in the fight against fraud, notably the fight against trafficking in human beings, fraud and breach of trust, money laundering, terrorism, forgery and use of forgery, identity theft and use of false names, violations of the law of December 15, 1980, on access to territory, residence, establishment, and removal of foreigners, and obstructions to administrative police missions;
- the staff responsible for border control, both in Belgium and abroad;
- the members of the staff of the Office of Foreigners, as far as necessary in the context of the investigation and detection of violations of the law of December 15, 1980, on access to territory, residence, establishment, and removal of foreigners, and the law of April 30, 1999, concerning the employment of foreign workers;
- the members of the staff of the Federal Public Service Foreign Affairs and the diplomatic and consular staff, individually authorized by the ambassador or consul, as far as necessary in the context of the fight against fraud;
- the company responsible for the production of identity cards and the persons strictly authorized by it within, and this, solely for the purposes of production and issuance of identity cards.

<sup>18</sup> Law of July 19, 1991, concerning population registers, identity cards, foreigner cards, and residence documents.